



Intellectual Property and Law Services
PATENT SEARCH

ABOUT THE PATENT SEARCH

This research report and novelty search was conducted through the available records of the various databases in the Mx. The purpose of this research was to locate issued patents and published applications, which appear to disclose similar concepts that relate to the above-named invention.

This report lists both the patents and published patent applications that appear relevant to your invention. A combination of keyword and class-based searching techniques were used to locate these references.

It is important to understand the purpose of a patent search. A patent search is not an absolute measure of patentability and there can never be a guarantee that such a search is complete. This is because the official patent databases include millions of issued patents, and there are over 140,000 class/subclass schemes classified with these databases. Additionally, with all patent searches, regardless of who searches, not all relevant prior art can be guaranteed to be found. Specifically, pending patent applications are not published until 18 months after they are filed, so even with an exhaustive and expansive “no stone unturned” patent search, there is no way to be sure that everything pending at the Patent Office has been discovered. The goal of a patent search, therefore, is not to guarantee that there is no relevant prior art that will bar patentability, but rather investigate whether pursuing with the expense of a patent application makes sense. While an extensive effort has been made to assure the integrity of the present search, no such search can be very conclusive.

Basis of the Opinion

In formulating my opinion, I have relied upon the description of your invention provided in the Invention Description section of the patent search. My opinion is based on the information I have been provided and the patents and publications not discovered in this search.



Intellectual Property and Law Services

Invention Working Title:

“Edible cutlery”

Design no1=

<https://www.amazon.com.mx/comestibles-incrEDIBLE-alternativa-compostable-individualmente/dp/B0BSR95FYG/>





Intellectual Property and Law Services
Patent no 1

MX2022003623A

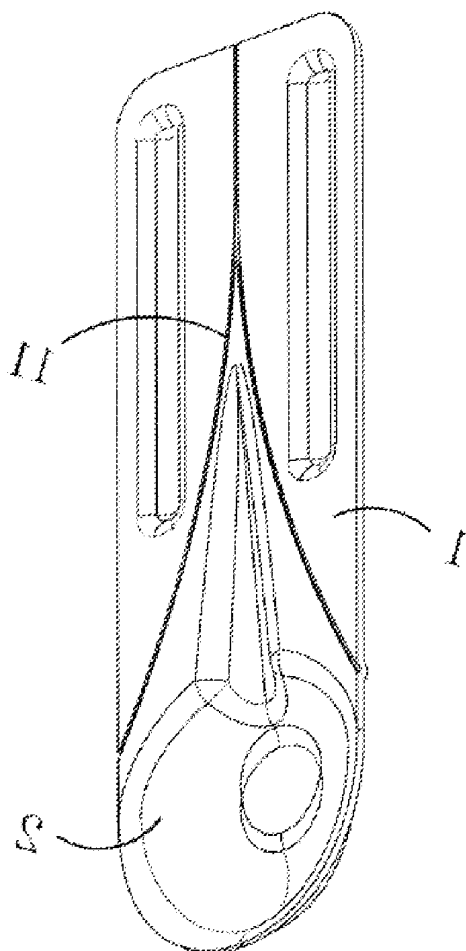
Pulp molded folding spoon.

Date: 2020-09-25

Status: Pending

Resemblance: Different design

<https://patents.google.com/patent/MX2022003623A/en?q=MX2022003623A>



MX368583B

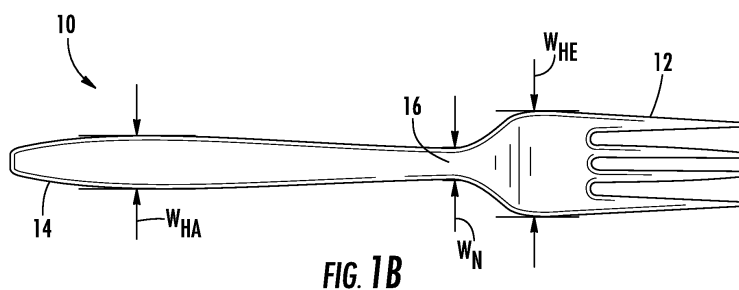
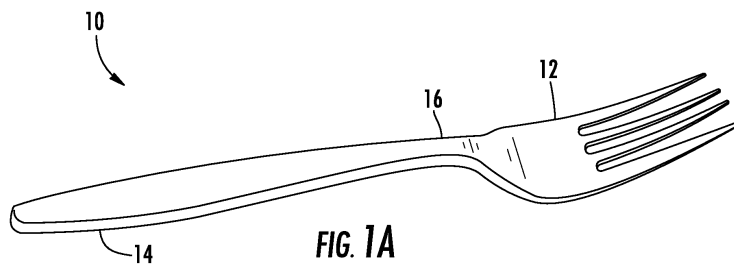
Cutlery dispenser and related methods.

Date: 2014-07-21

Status: Active

Resemblance: Exact Match

<https://patents.google.com/patent/MX368583B/en?q=MX368583B>





Intellectual Property and Law Services
Patent no 3

MX368586B

Cutlery dispenser and related methods.

Date: 2014-07-21

Status: Active

Resemblance: Different design

<https://patents.google.com/patent/MX368586B/en?q=MX368586B>

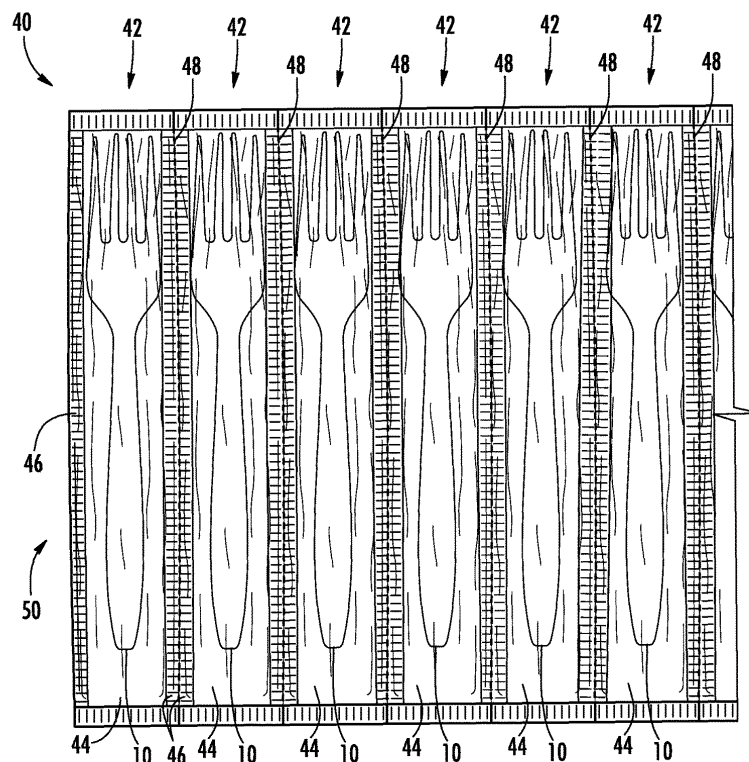


FIG. 2B



Intellectual Property and Law Services
Patent no 4

MX2016013374A

Forward advancing cutlery dispenser.

Date: 2014-08-07

Status: Active

Resemblance: Different design

<https://patents.google.com/patent/MX2016013374A/en?q=MX2016013374A>

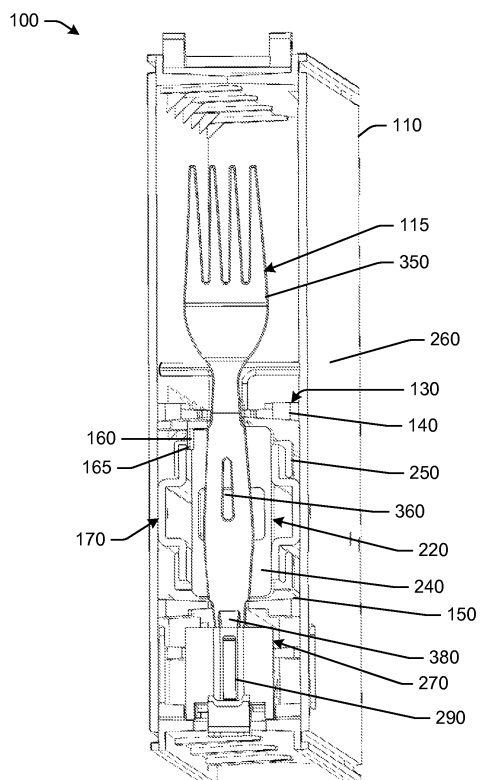


FIG. 2



Intellectual Property and Law Services

Final Remarks

Keeping in view all the detailed analysis and findings regarding your product named “Edible cutlery” on the basis of patents already registered with **Mx** we would say that after detailed research we found no exact active design and utility patent that match closely to the product in **Mx**.

After detailed analysis of the data we will recommend that your product can be sold in MX, on Amazon or for instance any other online or off line channel (website etc.) as a private label/ own brand product.

Competition

ASIN: B0BSR95FYG

Business Name: [incredible](#)

During our search we did not find any relevant patent registered on the name of our targeted competitor“ [incredible](#)” (Their name used on Amazon).



Intellectual Property and Law Services

Ready Reference:

Found Patents	Active Design	https://patents.google.com/patent/MX368583B/en?q=MX368583B https://patents.google.com/patent/MX368586B/en?q=MX368586B https://patents.google.com/patent/MX2016013374A/en?q=MX2016013374A
	Pending	https://patents.google.com/patent/MX2022003623A/en?q=MX2022003623A



Intellectual Property and Law Services

Disclaimer

Our opinion is based on the content of this report (collected from internationally available patent databases) and our best knowledge that you may disagree with. Please consider all the above cited patents and pay special attention to the following points;

- Before going to the next step, consider the patented designs and their status (active, abandoned, expired).
- You may do further risk assessment by looking at patent owners in case it is one of your competitors selling on Amazon.
- The databases do not include the patent applications which are filed and currently under process. So, this search does not cover under process applications.
- We strive to ensure the accuracy and completeness of our research services. However, because of the subjective nature of such research and possible incomplete data supplied to us, we cannot warrant that our search report is 100% complete or error-free.

This search is sold on a "best effort" basis only. Please note that we do not give any opinion on patentability, validity or infringement in this type of search report.



Intellectual Property and Law Services